1. The Ladakh division of the state of Jammu and Kashmir has a large area but is sparsely populated with a very difficult terrain. There has been a long pending demand of people of Ladakh, to give it the status of a Union territory to enable them to realize their aspirations. The Union territory of Ladakh will be without a legislature.

2. Further, keeping in view the prevailing internal security situation, fuelled by cross border terrorism in the existing state of Jammu and Kashmir, a separate Union territory for Jammu and Kashmir is being created. The Union territory of Jammu and Kashmir will be with a legislature.

In 2020, the erstwhile two separate union territory of Dadra and Nagar Haveli (originally created in 1961) and union territory of Daman and Diu (originally created in 1962) were merged into a new union territory of Dadra and Nagar Haveli and Daman and Diu[3a]. While introducing the Dadra and Nagar Haveli and Daman and Diu (Merger of Union Territories) Bill, 2019, in the Parliament, the central government gave the following reasons for the merger of these two separate union territories into a single union territory:

1. The Union territories of Dadra and Nagar Haveli and Daman and Diu share a lot in terms of administrative set up, history, language and culture. The Secretaries to various Departments, Chief of Police and Chief Conservator of Forest of the both Union territories are common and the officers of All-India Services posted by the Ministries of Home Affairs, Environment and Forests serve both these territories as per their work allocation. Further, the policies and development schemes in various sectors including Tourism, Industries, Education, Information Technology are similar.

2. Besides these, there are two secretariats and parallel departments which consume infrastructure and manpower in each Union territory. The Administrator, Secretaries, and Heads of certain departments functions in both the Union territories on alternate days affecting their availability to people and monitoring functioning of subordinate staff. The subordinate employees of both the Union territories are separate. Further, various departments of the Government of India have to co-ordinate with both the Union territories separately, causing duplication of works.

3. Having two separate constitutional and administrative entities in both the Union territories leads to lot of duplicacy, inefficiency and wasteful expenditure. Further, this also causes unnecessary financial burden on the Government. Besides these, there are various challenges for cadre management and career progression of employees.

4. In view of the policy of the Government to have “Minimum Government, Maximum Governance”, considering small population and limited geographical area of both the Union territories and to use the services of officers efficiently, it has been decided to merge the Union territories of Dadra and Nagar Haveli and Daman and Diu into a single Union territory.

Administration Of Union Territories

Articles 239 to 241 in Part VIII of the Constitution deal with the union territories. Even though all the union territories belong to one category, there is no uniformity in their administrative system.

Every union territory is administered by the President acting through an administrator appointed by him/her. An administrator of a union territory is an agent of the President and not head of state like a governor. The President can specify the designation of an administrator; it may be Lieutenant Governor